



POLICE DEPARTMENT

January 17, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202307344 (Incident Date: July 27, 2023) regarding Sergeant Thomas Petronis, Tax No. 957032 (PODS No. C-032472)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202307344, pertaining to Sergeant Thomas Petronis. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Petronis would be detrimental to the Police Department's disciplinary process.

In this matter, Sergeant Petronis, then in the rank of Police Officer, used force to place an actively resisting individual under arrest. After reviewing the available evidence, the Police Commissioner finds that Sergeant Petronis's use of force was reasonable under the circumstances and within Department guidelines.

Sergeant Petronis has no formal discipline history and no prior substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice, intends to retain jurisdiction over this matter and impose no disciplinary action for the alleged misconduct.

Sincerely,

MSB
Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



MOHAMMAD KHALID
INTERIM CHAIR

January 27, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202307344 (Incident Date: July 27, 2023) regarding Sergeant Thomas Petronis, Tax No. 957032 (PODS No. C-032472)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated January 17, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and impose no disciplinary action. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker stated that after reviewing the recommendation of the CCRB, you determined that charges should be retained. The CCRB disagrees with your recommendation.

Body worn camera footage showed Sergeant Petronis pull § 87(2)(b) cuffed left wrist up over his shoulder, bending it behind his backward to reach the right wrist via double-linked cuffs, while § 87(2)(b) screams in pain. Though § 87(2)(b) refused to put his arms behind his back to be handcuffed, Sergeant Petronis’ attempt to handcuff him in that manner exceeded the reasonable force necessary to gain control.

CCRB disagrees that Charges and Specifications should be retained and based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Sergeant Petronis in this matter.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



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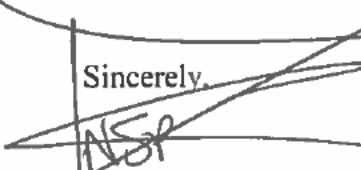
Re: CCRB Case No. 202307344 (Incident Date: July 27, 2023) regarding Sergeant Thomas Petronis, Tax No. 957032 (PODS No. C-032472)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated January 27, 2025, regarding the CCRB case involving Sergeant Thomas Petronis and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Petronis for the reasons expressed in my January 17, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed for the alleged misconduct against Sergeant Petronis.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office